

[1 EDW. 8. &
1 GEO. 6.]

*Wessex Electricity
Act, 1937.*

[Ch. lxviii.]



CHAPTER lxviii.

An Act to confer further powers on the Wessex Electricity Company and for other purposes. A.D. 1937.
[6th July 1937.]

WHEREAS by the Wessex Electricity Act 1927 the Wessex Electricity Company (hereinafter referred to as "the Company") were incorporated and authorised to supply electricity in the area defined in that Act for the purposes to the extent and subject to the conditions stated in that Act and to exercise other powers :

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And whereas by the Wessex Electricity Act 1928 the area in which the Company are authorised to supply electricity was extended and other provisions were enacted with respect to their undertaking :

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And whereas pursuant to powers conferred on the Company by the said Acts of 1927 and 1928 the Company have acquired and are carrying on the undertakings authorised by several Electricity Orders (as defined in this Act) :

And whereas the capital of the Company authorised by the said Acts of 1927 and 1928 is £1,200,000 and the Company are by those Acts authorised to raise by borrowing on mortgage of the undertaking or by the creation and issue of debentures or debenture stock any sum or sums not exceeding in the whole one-half of any capital for the time being issued by the Company and with the consent of the Electricity Commissioners any further sum or sums not exceeding in the whole one-half of the capital so issued :

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And whereas on the twenty-eighth day of February nineteen hundred and thirty-seven the issued share and loan capital of the Company consisted of—

1,030,000 ordinary shares of £1 each which are fully paid; and

£515,000 4½ per centum redeemable debenture stock:

And whereas the Company are also empowered by the said Acts of 1927 and 1928 to borrow or raise money on temporary loans or by the issue of notes or bonds of a currency of not less than five years and of not more than ten years up to an aggregate amount at any one time of not exceeding £400,000 and in pursuance of that power the Company have borrowed money on temporary loans and the aggregate amount of the temporary loans outstanding on the twenty-eighth day of February nineteen hundred and thirty-seven was £393,000:

And whereas the demand for electricity within the Company's area of supply (including the areas of supply for the purposes of the Electricity Orders for which the Company are now the undertakers) has increased and is increasing and for the purpose of enabling the Company to meet this increasing demand and to fulfil their obligations and to acquire carry on and develop the undertakings authorised by other Electricity Orders it is expedient that the authorised share and loan capital of the Company be increased:

And whereas it is expedient that further powers be conferred on the Company and further provisions be enacted with reference to their undertaking as in this Act contained and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Wessex Electricity Act 1937.

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(2) The Wessex Electricity Acts 1927 and 1928 and this Act may together be cited as the Wessex Electricity Acts 1927 to 1937. A.D. 1937. —

2.—(1) The Act of 1927 the Act of 1928 and this Act shall be deemed to be special Acts within the meaning of the principal Acts and the Electric Lighting (Clauses) Act 1899 but sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking authorised by the existing Acts and this Act or to the Company in relation thereto. Application of Electricity (Supply) Acts. 62 & 63 Vict. c. 19. 51 & 52 Vict. c. 12.

(2) Section 3 (Application of Electricity (Supply) Acts) of the Act of 1927 is hereby repealed.

3.—(1) The following Acts and parts of Acts so far as the same are applicable for the purposes of this Act and are not inconsistent with or varied by the provisions of the existing Acts or this Act are subject to the provisions of the existing Acts and this Act incorporated with and form part of this Act :— Incorporation of Acts.

The Companies Clauses Consolidation Act 1845 as amended by subsequent Acts except sections 101 to 104; 8 & 9 Vict. c. 16.

Part I (Cancellation and surrender of shares) and Part III (Debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts; 26 & 27 Vict. c. 118.

The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by subsequent Acts except subsection (2) of section 2 sections 3 to 5 7 to 9 21 to 29 30 (so far as regards a supply to authorised undertakers) 31 to 37 41 to 60 63 to 68 subsection (3) of section 69 sections 75 78 83 and 84 which excepted provisions shall not apply to the Company or the undertaking authorised by the existing Acts and this Act save so far as is otherwise expressly provided in the existing Acts and this Act :

Provided that the expression “electric supply company” in section 18 of the said schedule as so incorporated shall include any local authority supplying or using electricity for any purpose and that section shall for the purposes of this Act be read and apply accordingly.

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(2) Nothing in subsection (1) of this section or of the last preceding section shall affect the application of the Electric Lighting Act 1888 and the schedule to the Electric Lighting (Clauses) Act 1899 to the undertaking authorised by any Electricity Order of which the Company are for the time being the undertakers or to the Company in relation to any such undertaking.

Interpreta-
tion.

4.—(1) In this Act the several words terms and expressions to which by the principal Acts or the Acts wholly or partially incorporated with this Act meanings are assigned shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And unless the context otherwise requires—

“the Company” means the Wessex Electricity Company;

“the Act of 1927” means the Wessex Electricity Act 1927;

“the Act of 1928” means the Wessex Electricity Act 1928;

“the existing Acts” means the Act of 1927 and the Act of 1928;

“the principal Acts” means the Electricity (Supply) Acts 1882 to 1936;

“Electricity Order” means a Provisional Order or Special Order made under the principal Acts or any of them;

“the Minister” means the Minister of Transport;

“the area of supply” means the area defined in section 40 (Area of supply) of the Act of 1927 and extended by section 3 (Extension of area of supply) of the Act of 1928;

“authorised share capital” means the total amount which the Company are from time to time authorised by the existing Acts and this Act and any subsequent Act and by any Special Order made under section 6 (Increase of share capital by Special Order) of this Act to raise by the creation and issue of ordinary and preference shares and stock or by any of those modes;

“register of shareholders” and “shareholders’ address book” respectively include the register and address book of the holders of ordinary and preference stock (of any class) in the capital of the Company as well as the register and address book of holders of ordinary and preference shares in that capital. A.D. 1937.
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(2) In the existing Acts and this Act the expression “the undertaking” or “their undertaking” where the undertaking of the Company is referred to shall unless the context otherwise states or requires mean the whole undertaking of the Company as for the time being authorised by Act of Parliament and any Electricity Orders for which the Company are for the time being the undertakers Provided that—

- (i) the words “their undertaking” in section 4 (Incorporation of Acts) of the Act of 1927 and the words “the undertaking of the Company” in subsection (2) of section 70 (Acquisition of generating stations &c. by agreement) of that Act shall mean only the undertaking authorised by the existing Acts and this Act; and
- (ii) the words “the undertaking of the Company” in subsection (3) of section 72 (Power to deal in apparatus) of the Act of 1927 shall mean—

(a) in relation to any electric lines fittings apparatus and appliances provided in connection with a supply of electricity by the Company under the existing Acts or this Act and in relation to any lands buildings or works held by the Company in connection with any such electric lines fittings apparatus and appliances the undertaking authorised by the existing Acts and this Act; and

(b) in relation to any electric lines fittings apparatus and appliances provided in connection with a supply of electricity under any Electricity Order for which the Company are for the time being the undertakers and in relation to any lands buildings or works held by the Company in connection with any such electric lines fittings apparatus and appliances the undertaking authorised by such Electricity Order.

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— The definition of the expression “ the undertaking ” in section 5 (Interpretation) of the Act of 1927 is hereby repealed.

Additional
share
capital.

5.—(1) The capital of the Company authorised by section 8 (Capital) of the Act of 1927 as amended by subsection (1) of section 16 (Additional share and loan capital) of the Act of 1928 is hereby increased from one million two hundred thousand pounds to two million pounds and all the provisions of Part II (Financial provisions) of the Act of 1927 as amended by this Act shall after the passing of this Act have effect as if the words “ two million pounds ” were inserted in the said section 8 as so amended in lieu of the words “ one million two hundred thousand pounds.”

(2) Subsection (1) of the said section 16 of the Act of 1928 shall as from the passing of this Act cease to have effect.

Increase of
share
capital by
Special
Order.

6.—(1) The authorised share capital may from time to time be increased to such extent as may be authorised by a Special Order made by the Electricity Commissioners and confirmed by the Minister in accordance with the provisions of the principal Acts and accordingly the Company are hereby authorised to apply for and the Electricity Commissioners and the Minister are hereby respectively authorised to make and to confirm such an Order. Provided that a Special Order made in pursuance of the powers conferred by this section shall be laid before each House of Parliament and shall not come into force unless and until approved either with or without modification by a resolution passed by each such House.

(2) On the coming into force of any Special Order made pursuant to subsection (1) of this section all the provisions of Part II (Financial provisions) of the Act of 1927 as amended by this Act shall subject to the provisions of the Special Order have effect as if the capital of the Company authorised by section 8 (Capital) of the Act of 1927 as amended by the last preceding section of this Act were increased by the amount stated in the Special Order and the said section 8 were amended accordingly.

Power to
borrow.

7.—(1) Subject to the provisions of subsection (2) of this section the Company may from time to time raise by borrowing on mortgage of the undertaking

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or by the creation and issue of debentures or debenture stock any sum or sums not exceeding in the whole (inclusive of the nominal amount of the mortgages debentures and debenture stock of any class previously granted or issued by the Company and for the time being outstanding) one-half of the total nominal amount of the ordinary and preference shares and stock (of any class) in the capital of the Company which for the time being have been actually issued and accepted and are outstanding and also with the consent of the Electricity Commissioners (which consent the said Commissioners are hereby authorised to give) any further sum or sums not exceeding in the whole one-half of the total nominal amount of such ordinary and preference shares and stock as aforesaid.

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(2) For the purpose of determining the amount which may from time to time be raised by the Company under this section the shares and stock in the capital of the Company actually issued and accepted shall not be deemed to include—

- (i) any shares until one-half of the total nominal amount of those shares is paid up and not less than one-fifth part of the amount of each separate share has been paid on account thereof before or at the time of the issue or acceptance thereof; or
- (ii) any stock until one-half of the total nominal amount of such stock is paid up; or
- (iii) any shares or stock unless such shares or stock have been issued and accepted and to the extent aforesaid paid up bona fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and unless such persons or their executors administrators successors or assigns are legally liable for them.

(3) The powers of raising money conferred on the Company by this section shall be in substitution for and not in addition to the powers conferred by section 10 (Power to borrow) of the Act of 1927.

8. The Company may create and issue debenture stock subject to the provisions of section 12 (Debenture stock) of the Act of 1927. Debenture stock.

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Redeemable
preference
capital and
debenture
stock.

9.—(1) In this section unless the context otherwise requires—

“ Stock ” means and includes preference stock and debenture stock of any class;

“ Preference stock ” includes preference shares;

“ Issue ” includes re-issue;

“ Redeemable stock ” means—

(i) any stock issued under the powers of this section so as to be redeemable; and

(ii) any stock issued before the passing of this Act under the powers of the existing Acts so as to be redeemable and which has not been redeemed before the passing of this Act;

“ Redeemed stock ” means—

(i) any redeemable stock which has been redeemed; and

(ii) any stock issued before the passing of this Act under the powers of the existing Acts so as to be redeemable and which has been redeemed before the passing of this Act;

and being in either case stock available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit:

Provided that—

(a) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class

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which the Company are for the time being A.D. 1937.
authorised to create except during any reason-
able interval between the creation or (in the
case of redeemed stock) the issue of the stock
and the completion of the redemption of the
redeemable stock for the purpose of redeeming
which the stock of such particular class
is proposed to be so created or issued; and

- (b) during such interval as aforesaid the nominal
amount of any preference stock so created
or issued shall not be reckoned for the
purpose of determining the amount which
may be raised by the Company under section 7
(Power to borrow) of this Act.

(4) The redemption of any preference stock issued
so as to be redeemable shall not affect the validity
of any mortgage or debenture or debenture stock of
which the grant or issue by the Company was lawful
in the circumstances existing at the date of such grant
or issue.

(5) Redeemable stock issued after the passing of
this Act shall bear such rate of dividend or interest
(not exceeding any maximum rate prescribed in respect
of the particular class of stock) and shall be redeemable
at such time and in such manner and subject otherwise
to such terms and conditions as the directors may before
the issue thereof determine :

Provided that the terms and conditions of redemp-
tion upon which any such redeemable stock is issued
shall be stated in any offer by the Company of such
stock for sale and in the certificate of such stock and
no term or condition of redemption which is not
so stated shall be binding upon the holder of the stock.

(6) The Company shall not redeem out of revenue
any redeemable stock but any discount allowed on the
issue or any premium payable on the redemption
of any redeemable stock may be written off out of
revenue.

(7) Section 13 (Redeemable securities) of the Act
of 1927 is hereby repealed but notwithstanding that
repeal or anything in this section all redeemable stock
issued by the Company before the passing of this Act
shall remain valid in all respects and continue to be held
on and subject to the same terms conditions trusts

A.D. 1937. — declarations agreements charges liens and encumbrances in all respects as those on and subject to which such redeemable stock was issued.

Temporary
loans.

10. Subsection (1) of section 14 (Company may incur temporary loans) of the Act of 1927 is hereby amended by the insertion of the words “or other bodies or person” after the word “bankers.”

Exercise of
borrowing
powers by
directors.

11. Notwithstanding anything in any Act the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any powers for the time being vested in the Company of borrowing and re-borrowing on mortgage or temporary loan or otherwise and of creating and issuing debentures or debenture stock and of raising money by the issue of notes or bonds.

Application
of capital
money.

12. All money raised by the Company under this Act whether by shares stock debentures or debenture stock or by borrowing shall be applied only to the purposes of the undertaking to which capital is properly applicable.

Company
not bound
to regard
trusts.

13. The Company shall not be bound to see to the execution of any trust whether express implied or constructive to which any stock mortgages debentures or debenture stock issued or granted by the Company may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any such stock mortgages debentures or debenture stock as if such stock mortgages debentures or debenture stock were shares to which that section applies.

Quorum
for general
meeting.

14. For the purposes of constituting a meeting of the Company (whether ordinary or extraordinary) the prescribed quorum referred to in section 72 of the Companies Clauses Consolidation Act 1845 shall be five holders of shares or stock in the capital of the Company.

Voting at
general
meetings.

15.—(1) At all meetings of the Company (whether ordinary or extraordinary)—

- (i) every holder of ordinary shares or ordinary stock shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each pound in the nominal value of the ordinary shares and stock held by him; and

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- (ii) a holder of preference shares or preference stock shall on a show of hands and on a poll respectively be entitled to such rights of voting (if any) as may be prescribed by the resolution creating such shares or stock : A.D. 1937.
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Provided that no such holder shall be entitled to vote at any meeting in respect of any share or stock on which any call remains unpaid.

(2) At any meeting of the Company (whether ordinary or extraordinary) a poll may be demanded by the chairman of the meeting or by any three holders of shares or stock present personally and entitled to vote at the meeting.

(3) Section 76 of the Companies Clauses Consolidation Act 1845 relating to the appointment of proxies shall in its application to the Company have effect as though the following proviso were added thereto in lieu of the proviso contained in section 2 of the Companies Clauses Consolidation Act 1888 as amended by the Companies Clauses Consolidation Act 1889 (viz.) :— 51 & 52 Vict. c. 48.
52 & 53 Vict. c. 37.

“ Provided that where the shareholder is a member of a body corporate the proxy may be any member or officer of such body though not personally a shareholder in the Company.”

(4) Where a body corporate being a holder of ordinary shares or ordinary stock or of preference shares or preference stock to which voting rights are attached is present at a meeting of the Company by a proxy who is not a holder of shares or stock in the capital of the Company such proxy shall be entitled to vote for such body on a show of hands.

(5) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any share or stock to which a preferential dividend shall be assigned.

16. Section 26 (Appointment of proxies) of the Act of 1927 shall have effect as if the words “ or if the “ instrument has been deposited in the Central Office “ of the Supreme Court of Judicature an office copy “ thereof ” were inserted in the proviso to that section after the words “ the instrument appointing the attorney.” Appoint-
ment of
proxies.

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As to
directors.

17.—(1) The minimum number of the directors is hereby reduced to four and accordingly section 28 (Directors) of the Act of 1927 shall have effect as if “four” were substituted for “six” at the end of subsection (1) of that section and section 30 (Continuing directors) of the Act of 1927 shall have effect as if “four” were substituted therein for the words “the minimum number prescribed by this Act.”

(2) Every director who is not qualified at the time of his election as a director shall obtain his qualification within two months after his election and if any director does not within such two months obtain his qualification he shall vacate his office as director and shall be incapable of being re-elected a director until he has obtained his qualification.

(3) If any director shall devote to the business of the Company either his whole time and attention or more of his time and attention than in the opinion of the directors of the Company would usually be so devoted by a person holding such office or shall undertake or perform any duties or services other than those which in the opinion of such directors would usually be undertaken or performed by a person holding such office or shall be called upon to perform and shall perform extra services for any of the purposes of the Company then and in any of such cases the directors may remunerate the director so doing either by a fixed sum annual or otherwise or in such other manner as shall be determined by the directors and such remuneration may at the discretion of the directors be either in addition to or in substitution for all or any part of any other remuneration to which such director may be entitled :

Provided that the amount of such remuneration shall be disclosed in the next annual report of the directors or in the next annual accounts of the Company.

(4) For the purposes of the proviso to subsection (5) of section 28 (Directors) of the Act of 1927 a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made

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with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

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18. Section 95 of the Companies Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one of their body as a committee for the purposes of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other minor powers exerciseable by the directors.

Exercise of
minor
powers by
one director.

19. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting."

Signing of
minutes &c.

20.—(1) It shall be lawful for the Company at any ordinary meeting to elect one person or two persons or a firm of accountants qualified as mentioned in subsection (2) of this section as auditor or auditors of the accounts of the Company and any person or persons or firm so elected at any ordinary meeting shall hold office until the next ordinary meeting.

Auditors.

(2) A person shall not be qualified to be elected an auditor of the accounts of the Company unless he be and a firm of accountants shall not be so qualified unless every member of the firm be a member of one or more of the bodies named in subsection (3) (b) of section 239 of the Local Government Act 1933 and it shall not be necessary for such auditor or the members of such firm to hold any shares or stock in the capital of the Company.

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(3) No person or firm of accountants not being the retiring auditor or auditors of the accounts of the Company shall be eligible to be elected at any general meeting as auditor or auditors of the accounts of the Company unless notice in writing that such person or firm will be proposed for election as auditor or auditors of the accounts of the Company shall have been given to the secretary or left at the principal office of the Company not less than ten clear days before

A.D. 1937. — the date of the meeting The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor or auditors and during such ten days and the day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(4) If any auditor of the Company die or resign the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

Register of
shareholders
and share-
holders'
address
book.

21. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory on the Company to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by that Act to be entered in the register of shareholders and the shareholders' address book respectively.

Addresses of
shareholders
&c. abroad.

22. Any registered holder of shares stock debenture stock debentures or mortgages of the Company of any class whose address is not in Great Britain shall from time to time name an address in Great Britain which shall for the purposes of the Company be deemed to be the address of the holder and shall be entered in the shareholders' address book or any register which the Company may keep in lieu thereof under the last preceding section or any register of debenture stock debentures or mortgages kept by the Company pursuant to section 28 of the Companies Clauses Act 1863 and section 45 of the Companies Clauses Consolidation Act 1845 respectively and it shall not be obligatory on the Company to send any notice to any such holder otherwise than to an address so named.

Registers of
transfers.

23. Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep registers of transfers of shares stock debenture stock debentures or mortgages so long as the Company in lieu of those registers shall keep a file of all transfers and evidences of transmission of any shares stock debenture stock debentures or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts.

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24. Notwithstanding anything in section 13 of the Companies Clauses Consolidation Act 1845 or in any other enactment the Company shall not be under any obligation to issue a new mortgage or debenture or a new certificate of any shares stock or debenture stock of any class or a new warrant for any dividend or interest in lieu of any mortgage debenture certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such new mortgage debenture certificate or warrant is to be issued such indemnity as the directors may require against any and every claim or expense which may be made against the Company or which the Company may incur in respect of such lost or destroyed mortgage debenture certificate or warrant or the principal money shares stock debenture stock dividend or interest represented thereby.

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Indemnity
before
issue of
substituted
certificates
&c.

25.—(1) In addition to the powers conferred on the Company by section 38 (Power to grant pensions &c.) of the Act of 1927 the Company may if they think fit establish and maintain a fund to be called "the pensions fund" and pay out of the pensions fund gratuities of any sum or pensions or other allowances or benefits to any employees of the Company who may be contributors to the fund or to the widow family or dependants of any such employees and the pensions fund shall be applicable only for the payment of such gratuities pensions allowances and benefits as aforesaid and for no other purpose whatsoever.

Contribu-
tory pen-
sions fund.

(2) The Company may also prepare put in force and from time to time modify alter or rescind a scheme prescribing the terms and conditions on which the employees of the Company or any classes of such employees may or shall become contributors to the pensions fund and the contributions to be made by such employees and the gratuities pensions allowances or benefits to which such contributors shall be entitled.

(3) The Company may apply the revenues of the Company for all or any of the purposes of this section including the purpose of maintaining the pensions fund at an adequate amount.

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(4) No employee of the Company shall be required to become a contributor to any pensions fund established under this section until the fund has been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

Restricting
use of
electricity
for other
purposes.

26.—(1) Where the charges made by the Company for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Company for the first-mentioned purpose shall not without the consent in writing of the Company be used (whether after transformation or conversion or not) for the last-mentioned purpose. If any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding forty shillings for every day on which the offence is continued after conviction.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Company within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

Power to
refuse to
supply in
certain
cases.

27. Notwithstanding anything in the existing Acts or this Act or any enactment incorporated therewith respectively the Company may refuse to supply electricity—

- (i) to any person from whom any payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bona fide dispute) whether the payment be

due to the Company in respect of the premises for which a supply is demanded or in respect of other premises; or

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- (ii) to any person who is neither an authorised distributor as defined in the Act of 1927 nor the owner or occupier of the premises for which the supply is required.

28.—(1) The powers conferred on the Company by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows:—

Further powers of entry into premises.
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- (a) the premises which may be entered shall include all premises in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Company;

- (b) the purposes for which premises may be entered shall include the inspection of all electric fittings on the premises whether belonging to the Company or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Company or of any regulation or byelaw made thereunder and (where the Company are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Company shall not have any power of entry into any such premises except through an officer duly authorised by the Company who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Company to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so extended shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding twenty shillings for every day on which the offence is continued after conviction.

(3) In this section the expression "electric fittings" includes electric lines meters accumulators fittings works and apparatus for the supply and use of electricity.

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(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by (a) any railway company for the purposes of their railway undertaking or forming part of any station or goods depot or (b) any canal company for the purposes of their undertaking and forming part of any dock wharf or depot or (c) any gas water or electricity undertakers for the purposes of their undertaking.

Transfer of
under-
takings to
Company.

29. Section 69 (Transfer of undertakings of other undertakers to Company) of the Act of 1927 as amended by section 19 (Amendment of section 69 of Act of 1927) of the Act of 1928 shall have effect as if in subsection (1) of that section 69 the words from “and the undertakers” to “the Electricity Commissioners” were omitted and the following words were substituted therefor:—

“ and the undertakers under any such Order
“ which has been or may prior to the year
“ nineteen hundred and thirty-eight be confirmed
“ or approved by Parliament may with the
“ approval of the Electricity Commissioners ”;

and the said section 19 shall cease to have effect.

As to pur-
chase of
Company's
under-
taking.

30. Section 87 (As to purchase of undertaking) of the Act of 1927 shall have effect as if—

(a) in subsection (1) of that section—

(i) the words “ properly expended for ” were omitted and the following words were substituted therefor “ properly expended by
“ the Company and as regards so much of
“ the undertaking as is authorised by any
“ Electricity Order properly expended by
“ any former undertakers for the purpose
“ of such Order in ”; and

(ii) the words “ of the Company ” were omitted; and

(b) in subsection (2) of that section the words “ and
“ under any Electricity Order for which the
“ Company are at that date the undertakers ” were inserted after the words “ under this Act.”

[1 EDW. 8. &
1 GEO. 6.]

*Wessex Electricity
Act, 1937.*

[Ch. lxviii.]

31. The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 and as amended by the Electricity (Supply) Act 1928 shall extend and apply in the case of the acquisition by the Company of any undertaking or part of any undertaking under the powers conferred by section 29 (Transfer of undertakings to Company) of this Act as if such acquisition were an acquisition of a generating station under or in consequence of the said Act of 1926.

A.D. 1937.

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Compensation for deprivation of employment.

9 & 10
Geo. 5.
c. 100.
16 & 17
Geo. 5. c. 51.
19 & 20
Geo. 5. c. 4.

For the purposes of this section the Fourth Schedule to the said Act of 1926 shall be read and have effect as if the words “employed on an annual salary” in the proviso to that schedule were omitted and the expression “officer” meant a person employed in the performance of administrative professional clerical supervisory or technical duties not being a person employed by way of manual labour at a weekly or less than a weekly wage.

32. The Company may by agreement purchase or take on lease and maintain lands to be used by their employees for the purposes of recreation and may let or allow the use for those purposes of any lands for the time being belonging to or held on lease by them.

Recreation grounds for employees.

33. Section 66 (Persons under disability may grant easements) of the Act of 1927 is hereby amended by the insertion therein of the words “or of any other Act relating to the Company” after the words “the purposes of this Act.”

Persons under disability may grant easements.

34. For the purposes of section 13 of the Electric Lighting Act 1882 in its application to the Company in relation to the undertaking authorised by the existing Acts and this Act and the undertaking authorised by any Electricity Order for which the Company are for the time being the undertakers and for the purposes of section 12 of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with the Act of 1927 and this Act and any such Electricity Order a county council shall be deemed to be a local authority.

As to county roads.

35. Any notice to be served by the Company on a person supplied with electricity shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised

Authentication of notices by Company.

A.D. 1937. in that behalf by the directors being affixed thereto
— in writing or in print or by a stamp.

Form of
accounts.

36.—(1) Notwithstanding anything in section 9 of the Electric Lighting Act 1882 (as amended by section 6 of the schedule to the Electric Lighting (Clauses) Act 1899) in its application to the Company in respect of the several undertakings from time to time belonging to them whether authorised by the existing Acts and this Act or by any subsequent Act or by any Electricity Order for which the Company are for the time being the undertakers it shall not be necessary for the Company to fill up a separate annual statement of accounts in respect of each of such undertakings but they shall fill up one annual statement of accounts in respect of all of such undertakings.

(2) Each annual statement of accounts to be filled up by the Company pursuant to this section shall be in such form and contain such particulars and be published in such manner as may from time to time be prescribed in that behalf by the Electricity Commissioners.

(3) Subject to the provisions of this section the provisions of the said section 9 of the Electric Lighting Act 1882 (as amended as aforesaid) shall extend and apply to each annual statement of accounts to be filled up pursuant to this section.

Penalty for
interference
with works.

37. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Company or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Protection
of seals
&c. of
Company.
34 & 35 Vict.
c. 41.

38. The provisions of section 38 of the Gasworks Clauses Act 1871 incorporated with the Electric Lighting Act 1882 shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle

[1 EDW. 8. &
1 GEO. 6.]

*Wessex Electricity
Act, 1937.*

[Ch. lxviii.]

meter or apparatus affixed by the Company to any electric line within a consumer's premises or opens or suffers to be opened any such sealed or locked receptacle meter or apparatus. A.D. 1937.
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39.—(1) If the Company commence proceedings for the summary recovery of a sum due for the supply of electricity any other sum due or payable to the Company in respect of the sale or hire of any electric fittings supplied by them for or in connection with the consumption or use of electricity or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily if the amount due or payable in respect thereof does not exceed twenty pounds. Recovery summarily of sums due for fittings.

(2) In this section the expression "electric fittings" has the same meaning as in section 48 of the Electricity (Supply) Act 1926.

40. Save as is otherwise in the existing Acts and this Act expressly provided all offences against the existing Acts and this Act and all penalties forfeitures costs and expenses imposed or recoverable under the existing Acts and this Act may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

41. Proceedings for the recovery of any demand made under the authority of the existing Acts or this Act or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort. Recovery of demands.

42. Section 27 (Saving rights of Duchy of Cornwall) and section 28 (Crown rights) of the Act of 1928 shall extend to and apply for the purposes of this Act as if those sections were re-enacted in this Act. Incorporation of sections 27 and 28 of Act of 1928.

A.D. 1937.
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Repeal.

43. The following sections of the Act of 1927 are hereby repealed:—

- Section 25 (Voting and quorum);
- Section 36 (Auditors);
- Section 89 (Entry on premises);
- Section 91 (Recovery of penalties &c.);
- Section 92 (Recovery of demands).

Costs of Act.

44. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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